IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-V
(Special Bench)

Item No.-103
CP(CAA)No. 09/230/232/ND/2023
New IA(Co.Act.)-172/2026

IN THE MATTER OF:
Cordial Technologies Pvt. Ltd. With SD Polyfilms Pvt. Ltd. **....Applicant**

SECTION
Under Section 230-232 of the Companies Act

Order delivered on 13.05.2026

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

MS. REENA SINHA PURI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

New IA(Co.Act.)-172/2026:-

This application has been filed under Rule 11 of the NCLT Rules, 2016 seeking the following prayers:

1. *Permit the Applicant Companies to withdraw the Preset Company Petition/Application pending before this Hon'ble Tribunal; and*
2. *Pass such other order(s) as this Hon'ble 'Tribunal may deem fit and proper in the interest of justice.*

It may be noted that the present application seeking withdrawal has been filed pursuant to the order dated 09.07.2025, whereby, the Applicant was granted time to file an appropriate application seeking withdrawal of the present petition.

Gunjan
13.05.2026

The present application has been filed on 29.04.2026. There is no explanation as to why it has taken such a long time for filing the present application inasmuch as the time was sought on 09.07.2025. The reasons as stated in Para 2 and 4 are set out hereunder:

a. *That due to an inadvertent error in the above-mentioned petition, the position of the Petitioner Companies has been mentioned incorrectly, whereby the company mentioned as Petitioner No. 1 was required to be Petitioner No. 2 and the company mentioned as Petitioner No. 2 was required to be Petitioner No. 1.*
b. *That in view of the above inadvertent error and pursuant to the directions mentioned in the Order dated 9th July, 2025, the Applicant/Petitioner Companies have in their respective Board Meetings have decided to withdraw the present Company Petition. Further, the relevant Board Resolution passed in the meeting of the Board of the Directors of the Petitioner No. 1 and Petitioner No. 2 are already annexed herewith.*

Having regard to the facts and circumstances of the case, we deem it appropriate to permit the Petitioner to withdraw the present petition subject to payment of cost of Rs. 1,00,000/- to be deposited by the Petitioner in the Prime Minister's National Relief Fund within a period of 1 week for delay and latches. List this application for compliance on **10.06.2026.**

CP(CAA)No. 09/230/232/ND/2023:-

List the matter on **10.06.2026.**

Sd/-
(REENA SINHA PURI)
MEMBER (T)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (J)

Gunjan
13.05.2026